

		a proposed order was served, no proposed order is reflected on the court docket. The court otherwise finds good cause to grant the relief requested on the merits. Counsel is ordered to submit a proposed order forthwith. The order granting relief is effective upon filing of a proof of service of the signed order on the client. <i>Counsel to give notice.</i>
2.	Bank of America, N.A. v. Gorgi 25-1478649	The motion for attorney fees filed by plaintiff Bank of America, N.A. (Plaintiff) is GRANTED. In an action to enforce a contract authorizing an award of fees and costs to one party, the party "prevailing on the contract" is entitled to reasonable fees in accordance with <i>Civil Code section 1717</i>. (<i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 615–617; <i>Exxess Electronixx v. Heger Realty Corp.</i> (1998) 64 Cal.App.4th 698, 706–707.) <i>Civil Code section 1717(a)</i> provides that reasonable attorneys' fees shall be fixed by the court and shall be an element of the costs of suit. The court has broad authority to determine the amount of reasonable fees. (<i>PLCM Group v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) The court may make its determination of the value of the services rendered without the necessity of expert testimony. (<i>Id.</i> at 1096.) In making its determination, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and any other circumstances in the case. (<i>Id.</i>) Courts apply a lodestar method to calculate reasonable attorneys' fees. (<i>Meister v. U.C. Regents</i> (1998) 67 Cal.App.4th 437, 448-49.) The court determines a lodestar figure based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved. (<i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 48-49.) With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41.) Here, Plaintiff is the prevailing party as the Court granted its motion for summary judgment. Defendants Alireza A. Gorgi and Mehrnaz Farrokhi (collectively, Defendants) do not dispute Plaintiff is the prevailing party. Plaintiff may thus claim reasonable attorney's fees pursuant to the attorneys' fees provision of the subject contract. The Court finds the hourly rates requested reasonable given counsels' experience and the nature of the dispute.

The Court has reviewed the declaration of Plaintiff's counsel and the billing records provided and determines the time expended to be generally reasonable with no obvious duplication or padding. While the total amount of fees sought is substantial, the amount of time incurred is supported by counsel's detailed declaration and the detailed billing records.

Defendants argue generally that the number of hours incurred is excessive for this "simplistic" collections case. Defendants also contend the billing records contain block billing, making them objectionable. Defendants do not point to any specific time entries or evidence to support the foregoing arguments and thus have failed to meet their burden of showing any of the time billed is excessive. (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

Defendants also contend the time entries for Ms. McMains include no description and the Court thus cannot award fees for her work. Defendants do not clearly identify which time entries they are referring to. In any event, the billing records do, indeed, include a description of the tasks performed by Ms. McMains. Defendants have not shown any time spent by McMains should be excluded.

Defendants also argue that because the billing records are heavily redacted, Plaintiff cannot meet its initial burden to establish the reasonableness of the fees sought. However, Plaintiff explained in its motion that the billing records included redactions for fees incurred in connection with Defendants' bankruptcy case, which are not being sought by Plaintiff in this motion. These redactions thus do not impact the Court's analysis of the fees sought. In addition, the redactions for attorney-client privileged information do not render the billing records so incomprehensible that the Court cannot determine the reasonableness of the fees sought. Moreover, as Plaintiff points out in the Reply, it is not necessary to provide detailed billing timesheets to support an award of attorney fees. (*Sweetwater Union High School Dist. v. Julian Union Elementary School Dist.* (2019) 36 Cal.App.5th 970, 994.) "Declarations of counsel setting forth the reasonable hourly rate, the number of hours worked and the tasks performed are sufficient." (*Ibid.*) Here, the declaration of Plaintiff's counsel provides the foregoing information and would thus be sufficient on its own to support the fees requested. (Assayag Decl., ¶¶ 12-13, 15-16.)

Based on the foregoing, the motion is **GRANTED**.

Plaintiff is awarded attorneys' fees in the requested sum of \$46,209.50 against Defendants.

Plaintiff's request for judicial notice is **GRANTED** as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (*Ev. Code §452(d)*; *Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

		<i>Plaintiff shall submit a proposed order and shall give notice of this ruling.</i>
3.	Keith v. Rosario 25-1481402	The unopposed motion of plaintiffs Luke Campbell Keith, Marshaleen Keith, and Tyler Keith (collectively, Plaintiffs) for leave to file a first amended complaint is GRANTED. (<i>Code Civ. Proc.</i>, § 473(a)(1).) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) Plaintiffs have shown the interests of justice would be served by allowing the amendment. In addition, the motion is unopposed. Accordingly, the motion is GRANTED. The First Amended Complaint is to be separately filed within 5 days of the date of this order. <i>Counsel for Plaintiffs is ordered to give notice of this ruling.</i>
4.	Wilmington Savings Fund Society, FSB v. Mitchell 25-1498917	The motion of plaintiff Wilmington Savings Fund Society, FSB, not in its individual capacity but solely as Owner Trustee for the FLIC Residential Mortgage Loan Trust 1 (Plaintiff) for leave to file a first amended complaint is CONTINUED TO JULY 2, 2026, AT 1:30 P.M. IN DEPARTMENT C20. The Court's files do not reflect that any opposition to this motion was filed by defendant Elvin W. L. Mitchell, Jr. (Defendant). However, it appears Defendant served Plaintiff with an opposition because, on May 29, 2026, Plaintiff filed a reply to Defendant's opposition. The Court will therefore CONTINUE the hearing on this motion as stated above so that Defendant can file the opposition with the Court. Defendant is ORDERED to file the same opposition which he previously served on Plaintiff, within 7 days of this order. Aside from the opposition, no further briefing is permitted. <i>Counsel for Plaintiff is ordered to give notice of this ruling.</i>
5.	Justin J.S.Morgan Law Corporation v. Wood and Delgado 25-1483376	Before the court is a motion to quash brought by Defendants Wood & Delgado, J.P. Wood Law Corporation and Wood Law Corporation as to the subpoena for records issued to Weyer, Crelling & Custer. The motion is GRANTED and the request for sanctions is DENIED, as set forth herein. The Court notes initially that the motion is defective as Defendants failed to file a Separate Statement in support of the Motion as required by <i>CRC, rule 3.1345(a)(5)</i>. Nonetheless, the Court will address the merits.